

Dayan Levi Yitzchok Raskin

London, England

Author of *Nesivim B'Sdeh HaShlichus*

אמירה לנכרי

Using a Shabbos Goy

What do Colin Powell, Vladimir Putin, Al Gore, and Barak Obama have in common? Each is rumored to have served as a Shabbos goy.

The following is a compilation of specific circumstances where amira l'nochri would be permitted. Please bear in mind that each situation is different and one should not apply a rule from one example to a non-identical situation without first consulting a rov.

Additionally, some of the following are permitted *only* in bedevied situations, when confronted with a situation on Shabbos itself. On Erev Shabbos, one is obliged to take appropriate measures so that he should not have to resort to the said leniencies.¹

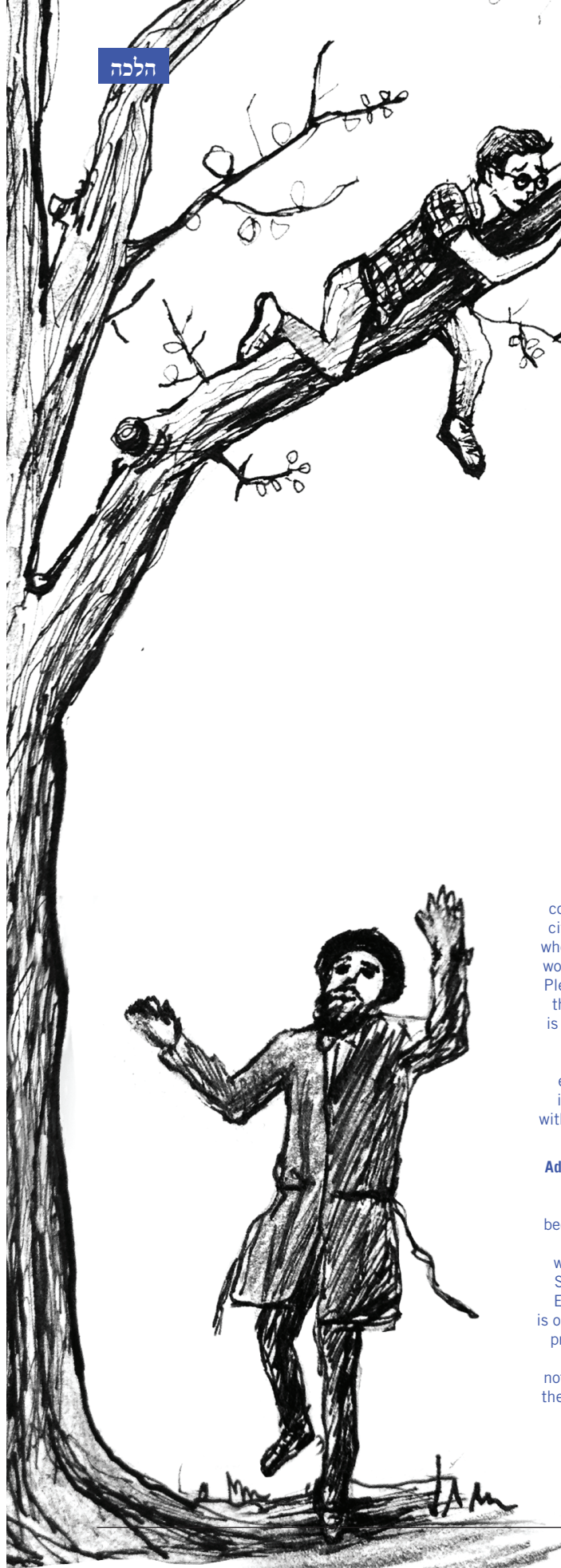
Though using a Shabbos goy is quite common, and was especially so in past generations before the explosion of automation, the laws pertaining to amira l'nochri on Shabbos are quite complicated. Here's a refresher to keep in mind at your Chabad House.

מלאכה שעושה הנכרי לצורך עצמו For the Goy's Benefit

The general rule is that one may *not* ask a goy to perform any melocha that is forbidden for a Jew to perform himself. This is, in part, because the goy performing the melocha is considered as if he were the shliach of the Jew for whom he does the melocha.²

An additional gezeira, established to prevent Jews from asking goyim to perform melochos for them, is that a Jew may not benefit from a melocha that was done for the Jew's benefit, even if the Jew did not ask the goy to do so.³

For example, if a goy notices a Jew sitting in the dark and turns on the light to help the Jew,



For the Goy's Benefit



The Jew May Benefit from the Melocha

For the Sake of a Mitzva



Goy Can Perform Melocha D'Rabonon

For the Sake of a Child or Choleh



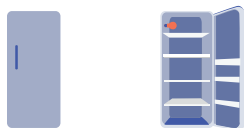
Goy Can Perform Melocha D'Rabonon

For the Goy's Convenience



Goy Can Perform Melocha D'Oraisa

Psik Reisho



Goy Can Perform Indirect Melocha D'Oraisa

the Jew may not benefit from the light. However, benefit from the melocha of a goy is only forbidden when it was performed for the Jew.⁴ If a goy did a melocha for his own benefit, a Jew may derive benefit from that melocha afterward.

For example, if a Jew is sitting and eating in a dark room, he may invite a goy to join him for a drink. If the goy on his own accord decides to turn on the light, the Jew may benefit from this melocha. He may even ask him to leave the light on when he leaves.

שבות דשבות לצורך מצוה For the Sake of a Mitzva

One may ask a goy to perform an act that is forbidden midrabanan, as long as it is for a mitzva.⁵

For example, if a shliach realizes on Shabbos that he underestimated the amount of people coming to shul and there are not enough siddurim, he may ask a goy to carry more siddurim through a carmelis. (This case would present itself if a shliach lived on the same private property as his shul but without a proper mechitza encom-

passing the two buildings.)

לצורך חולה For the Sake of a Choleh

For the benefit of a choleh, one may ask a goy to perform a melocha d'oraisa.⁶ This is the case even regarding a non-life-threatening illness, as long as the patient is ill or in pain to the extent that he is confined to bed.

It should be noted that a woman who has recently given birth is considered a choleh she'ein ba sakona until thirty days after the birth and is, therefore, permitted to ask a goy to perform even a melocha d'oraisa for her.⁷

A child's needs are deemed similar to those of a choleh.⁸ Therefore, one may ask a goy to perform a melocha to provide for a child's needs.

In extremely cold weather, one is permitted to ask a goy to turn on or raise the heat. This is due to the rule that hakol k'cholim eitzel hakor⁹ (everyone is considered ill should he be exposed to extreme cold).

Some poskim also apply this rule to extreme heat.¹⁰ It would, therefore,

be permitted to ask a goy to turn on or raise the air conditioning.

ציווהו דבר היתר, והנכרי בוחר לעשות דרך איסור For the Goy's Convenience

If a goy is performing permissible work for the benefit of a Jew, he may perform a melocha for his own convenience.¹¹ This applies as long as the job he was given can be reasonably completed without doing a melocha. Additionally, the melocha he chooses to perform cannot disturb the spirit of Shabbos by making noise.¹²

For example, if a goy is cleaning a room, he may turn on a light to allow him to see well and more easily complete his job. Another example: If a goy is asked to transport chairs around a building, he may use the elevator for his own convenience.

פסיק רישיה Psik Reisha

A goy is permitted to perform an act that is not a melocha in itself but would automatically cause a melocha to be done, even when done for the direct benefit of the Jew.¹³

We share in your Shlichus!

You bring them back to Yiddishkeit,
We bring forth the most Mehudar Judaica.

LUBAVITCH WORLD HEADQUARTERS

Announcing our all new Chabad Edition Talis!

Silk corners & lining | Custom sized | Permanent Knot | Non-slip | No fray Tzitzis | Stain Protected

Crowning you with glory

www.KeterJudaica.com

3720 14th Avenue
Brooklyn, NY 11218

Keter Judaica. Meeting the full range of Judaica needs with unmatched quality and innovation for 30 years. Available in all better Judaica stores.

Exclusive distributor
worldwide of:

For example, if one has forgotten to disconnect the light bulb in his refrigerator before Shabbos, he may ask a goy to open it, even though he knows that the light will automatically be turned on as a result. This is permissible because turning on the light is neither the intended nor desired action at hand. (See below for further details involved in this example.)

כשיש מחלוקת הפוסקים If There Is a Machlokes

If there is a machlokes haposkim regarding a din on Shabbos, one who normally follows the stricter opinion may, in this case, rely on the more lenient opinion and ask a goy to perform the act, even for the Jew's own sake.¹⁴

For example, this din would apply in the case of opening cans on Shabbos, which is prohibited by certain poskim but allowed by others. A Jew would be allowed to ask a goy to open a can on Shabbos even if the Jew is forbidden to do so himself.

Another example: One who follows the stricter poskim and does not rely upon an eiruv despite it being a fully kosher one may ask a goy to wheel a baby carriage or carry other items for him through the public domain.

שלא בדרך ציווי או בדרך רמז Hinting

In certain situations, some poskim permit a Jew to motivate a goy to do a melocha, with proviso that the Jew avoids giving an actual instruction and instead waits for the goy to act on his own initiative (which was stimulated by the Jew!). The Alter Rebbe disagrees with this approach

and rules that the leniency that one may hint to a goy in a non-direct way (shelo b'derech tzivui) applies only if the goy believes he is performing the act to complete his job.¹⁵

For example, if a mail carrier delivers an envelope on Shabbos, one may say, "I am not able to read this if it is sealed." If the goy understands the hint and opens the letter for him, he is only doing so since he believes this constitutes part of his job of delivering the letter.

A Jew who needs a melocha done after Shabbos may also hint in the above manner to a goy on Shabbos,¹⁶ even though one is generally not allowed on Shabbos to discuss melochos to be done after Shabbos due to the prohibition of "v'daber dovor." This is permitted because he is not mentioning the melocha explicitly, only hinting to it.

Compiled by Rabbi Mannis Frankel



Hilchos Amira L'Nochri

Written by
Rabbi Sholom Dovber
Levin
Published by Kehot
Publication Society

15. שם ש"ק 1.
16. שם.
17. ראה שו"ת סימן ר"ג ס"ט.
18. סימן שמ"ב ס"א.
19. אולי יש לדמות לדין בכור שבא לכבות (שו"ת סי' שד"א).
20. ואף בזה דעת עשנו הוא עשה, שלא יוסיפו להסיריו לפתחו ולמנוח המוקד, וזו לאצטרופי מה שבמבנה מטרה חשמלית אינו יוצר נזל.
21. שמיטת שבת בהלכות פ"ל ס"ב.
22. ראה שמיטת שבת בהלכות פ"ל ס"ב.
23. ראה שו"ת סי' רסו ס"י, אלא שיש"ל דגם לגדול אין כאן איסור מכה מן התורה, שהרי אינו יוצר נזל, ומ"מ מוטב שיעשה ע"י קצין בלאחר יד, ודאי שבת ושבועות למנוח הפסד גדול, משעשה הוא בעצמו, ע"ש ס"י, ודאי יש מן הפוסקים שלא הבחינו בכבוד החשמל בכך שאינו יוצר נזל.

1. שו"ת קונטרס אחרון סי' שג סק"א.
2. שו"ת א"ח רמ"ג, א.
3. שם סעיף ב.
4. שם סימן רע"ו, י'.
5. שם סימן ש"ג, י"ב.
6. שם סימן ש"ב, י"ט.
7. שם סימן ש"ל, י"ח.
8. שם סימן רע"ו, י'.
9. שם סעיף ט"ו.
10. שמיטת שבת בהלכותהפ"ק, י"א.
11. שו"ת שם סימן ר"ב סעיף י"ב, ת"ע שם ס"ט ובסימן ש"ו סעיף ט"ו.
12. ראה שם סימן ר"ב סעיף ה.
13. שם סימן ר"ג, י'.
14. שם סימן ש"ה, י"ח, ת"ע שם סי' ש"ג, ו' ת"ק, ג'.
15. ומה שבסימן ש"ה י"ח כתב רק שאין למנוח, י"ל שיש לכ"ע אסור ע"כ מ"ס.

Questions & Answers

Q The flame underneath the blech on my gas stove was extinguished on Shabbos. Is it better to turn the gas off myself, or call a goy? If I need to serve the cholent to 100 guests, can a goy rekindle the flame?

A You may not ask a goy to rekindle the flame. You may turn off the gas yourself, but since the knob is muktzeh, do so in an unusual manner, kil'achar yad. Alternatively, you may move the cholent to another blech that is alight, as long as the cholent is still appreciably warm. In regards to this specific situation, the fact that the cholent has been removed from the flame is not a problem bedieved when warm food for the Shabbos meal is at stake.¹⁷

Q The flame underneath my blech is too high. If I leave it as is, all of my food will burn. Is there anything I can do?

A A goy is not permitted to lower the flame. Place some baking pans upside-down atop the blech and set the pots upon them, minimizing the amount of heat that will affect the Shabbos food.

Q Someone accidentally knocked the plug of my slow cooker out of the wall. I am expecting 25 guests at our Shabbos meal tomorrow, and serving only fish and kugel just won't cut it. What am I permitted to do?

A A goy is not permitted to plug it back in. Transfer the contents of the slow cooker to a kli sheini and wrap it well with a blanket. Additionally, prepare a good apology speech.

Q Our house experienced a power outage on yom tov, and the oven that had been preset before yom tov turned off. Is there any way I can get a goy to turn on the oven? Does it make a difference whether the food I would like to put in it is raw or has already been cooked?

A The following is applicable only on yom tov; on Shabbos, one may

B E N C H M A R K
M E R C H A N T S O L U T I O N S



SAVE.

...Without Sacrificing Service!



Yechiel Jaffe

212.444.9565

Mike.Jaffe@SwipeBMS.com

www.SwipeBMS.com



not ask or even hint to a goy to turn on any kind of oven or stove.

With a gas oven, l'chatchila, one may ask a goy on yom tov to turn on the oven if the pilot is already lit. The consequential melocha involved in pressing buttons on a digitized computer screen is not the mission that one has asked the goy to carry out and, therefore, is not a problem. If there is no computer screen, a Jew may turn the oven on himself.

However, asking a goy to turn on an electric oven on yom tov is permitted only bedieved; you may fall back on this heter if something slipped up, but you may not rely on this at the outset (e.g., in order to save the cost of keeping an oven on for a three-day yom tov, when Shabbos immediately precedes yom tov; see note 1).

Putting uncooked food into an oven that has been turned on by a goy does not constitute a problem with regard to bishul akum, as the Jew is the one putting the food into the oven.

Q The yortzeit licht I use to light my yom tov candles has been extinguished. What should I do?

A On yom tov, you may ask a goy to light a candle for you and carry it home, protected by a small jar. (A large jar may present the issue of "ohel.") Failing that, you may ask a goy to strike a match for you.

Q A light was accidentally left on in a bedroom before Shabbos. May I call a goy to turn it off?

A Not according to the Alter Rebbe. If a goy did turn off the light without any indication whatsoever from you, you may sleep in that room, as it is possible to sleep in a room where the light is on (see note 19).

Q The lights in the shul were accidentally turned off on Shabbos. May a goy be asked to turn the lights on so that we can all daven?

A Yes.¹⁸

Q I forgot to disconnect the light bulb inside our refrigerator before Shabbos. What should I do?

A You may ask a goy to open and close the fridge, even though the light will inevitably switch on or off. You may also inform the goy outright of your inability to open and close the fridge until nightfall; however, you may not suggest that he do anything about it. If the goy offers to disconnect the bulb, you may accept his offer.¹⁹

Q My non-Jewish cleaning lady came to help clean up after our shabbaton on Friday night. I had left all the dishes in the sink for her to wash, but I noticed her loading them all into the dishwasher instead. As my dishwasher does make some noise (albeit not too much), am I allowed to permit her to do this?

A Yes.²⁰

Q The melaveh malka concluding our shabbaton is scheduled to start an hour after Shabbos. As we will use the dining room for the Shabbos daytime meal, it will need to be thoroughly cleaned and set up for the melaveh malka. With only an hour and limited manpower, what may I tell my non-Jewish cleaning lady to do? What may I hint? What may I not do or say?

A One may instruct the goy to tidy up the room and set up the tables. However, as mentioned at the beginning of this article, this is permitted only in a bedieved situation; one should not l'chatchila plan an event with the strategy to rely upon non-Jewish manpower to set up while it is still Shabbos.

Q I want my cleaning lady to clean the carpets following our kiddush on Shmini Atzeres, and I have told her that she can do this with a broom. Do I have to stop her if she takes out the vacuum cleaner on her own accord? Does this change if nobody is home?

A Firstly, note that sweeping carpets with a broom on yom tov or Shabbos is not permitted.²¹ You may, however, tell the non-Jewish cleaning lady to clean the room, and if she chooses to do so in a manner of melocha, that is permissible.²²

Q I had a shabbaton in my house with a large-scale daytime meal. My kitchen is quite a mess and full of dirty dishes that I will not be using until next week. May I ask my non-Jewish cleaning lady to clean them? Do I have to stop her if she does so on her own? I do appreciate having a clean kitchen, especially since I have so many people coming and going Shabbos afternoon.

A It is important to differentiate between tidying up a room that will be used on Shabbos, and washing dishes. In other words, dirty dishes could be neatly stacked and washed after Shabbos.

Tidying for Shabbos may be done on Shab- bos. Tables and chairs that are not being used may be cleared away and stacked. You may give the goy the job of washing dishes, telling her that you need it done on motzoei Shabbos. If the goy chooses to do this on Shabbos for her own

ALWAYS ASK A ROV

The halochos regarding this topic are vastly detailed, and in no way can a simple article cover all relevant points. This is certainly the case when dealing with modern-day situations that are not specifically mentioned in halocha. A competent rov should always be consulted regarding any specific situation.

convenience, you may allow her to do so (see note 22).

Q My home/Chabad House has a burglar alarm that's rigged to our local police station. When the alarm goes off and is not disarmed within thirty seconds, we receive a phone call from the police station. If that call is not answered, the police come over to see what is going on. If it is a false alarm, they will serve us with a heavy fine. If a false alarm goes off on Shabbos, what should we do?

A L'chatchila, one should not install such a system! Bedieved, because there is a major financial loss at stake, one may even ask a child to disarm the alarm, but this should be done by the child in an unusual manner (kil'achar yad).²³ If there is no child available (v'kol shekain v'kal vachomer if there's no goy), grin and bear it.

Q Is there any time that I have to stop a goy from doing melocha in my house on Shabbos?

A If you see a goy warming up your food, you must stop him from doing so. 



Which halachic questions would you like to see answered in the next issue of The Chabad House Compass Magazine? We welcome your suggestions and feedback to editor@compassmagazine.org.